Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,

PLAINTIFF,

v.

CSAA Insurance Exchange;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to CGC-21-594102)

PLAINTIFF'S REQUESTS FOR ADMISSION

[Code Civ. Proc., § 2033.010 et seq.]

INSTRUCTIONS

The following Requests for Admission are propounded to Defendant CSAA Insurance Exchange pursuant to Code Civ. Proc., § 2033.010 et seq. Responses are due within 30 days of service. Failure to timely respond shall result in a motion to deem the matters admitted pursuant to Code Civ. Proc., § 2033.280.

HOLD FOR SERVICE: These RFAs are to be served immediately upon CSAA filing a responsive pleading.

THE DENIAL LETTER AND ITS REPRESENTATIONS

REQUEST FOR ADMISSION NO. 1:

Admit that CSAA Insurance Exchange issued a denial letter to Plaintiff Franciscus Dylan Rosario

dated February 25, 2021, regarding a claim arising from the February 4, 2021 collision involving its insured, Subhi Abdelhalim.

REQUEST FOR ADMISSION NO. 2:

Admit that the February 25, 2021 denial letter stated, in substance, that CSAA had "concluded" its investigation of the claim.

REQUEST FOR ADMISSION NO. 3:

Admit that the February 25, 2021 denial letter stated, in substance, that CSAA had "concluded" that its insured, Subhi Abdelhalim, was "not liable" for the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 4:

Admit that the February 25, 2021 denial letter was intended to communicate to the claimant that CSAA had completed its investigation and reached a final determination on liability.

REQUEST FOR ADMISSION NO. 5:

Admit that a reasonable claimant receiving the February 25, 2021 denial letter would understand it to mean that CSAA had obtained and reviewed relevant evidence before determining that its insured was not liable.

INVESTIGATION STANDARDS AND PROCEDURES

REQUEST FOR ADMISSION NO. 6:

Admit that industry standards for investigating third-party automobile liability claims include obtaining police reports and related law enforcement documentation when law enforcement responded to the incident.

REQUEST FOR ADMISSION NO. 7:

Admit that when law enforcement responds to a vehicle-pedestrian collision, a reasonable and complete investigation would include obtaining the 911 call recording, body-worn camera footage, and computer-aided dispatch records.

REQUEST FOR ADMISSION NO. 8:

Admit that a reasonable and complete investigation of a pedestrian-vehicle collision claim would include obtaining and reviewing statements made by the insured driver to 911 operators and/or responding law enforcement officers.

REQUEST FOR ADMISSION NO. 9:

Admit that CSAA Insurance Exchange's claims-handling procedures require adjusters to obtain police records when law enforcement responded to an incident before issuing a liability determination.

KNOWLEDGE OF LAW ENFORCEMENT INVOLVEMENT

REQUEST FOR ADMISSION NO. 10:

Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that law enforcement responded to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 11:

Admit that when law enforcement responds to a collision, records including 911 call recordings, body-worn camera footage, and dispatch logs are routinely generated.

REQUEST FOR ADMISSION NO. 12:

Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that a 911 call had been placed in connection with the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 13:

Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that body-worn camera footage existed from law enforcement officers who responded to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 14:

Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that its own insured, Subhi Abdelhalim, may have made statements to the 911 operator, responding officers, or other persons at the scene of the February 4, 2021 collision.

SCOPE OF CSAA'S PRE-DENIAL INVESTIGATION

REQUEST FOR ADMISSION NO. 15:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not contacted the San Francisco Police Department to request records relating to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 16:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not contacted the San Fran-

cisco Department of Emergency Management to request records relating to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 17:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained any medical records or documentation regarding injuries sustained by Plaintiff in the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 18:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not retained an accident reconstruction expert, biomechanical expert, or any third-party investigator to evaluate the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 19:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not interviewed its own insured, Subhi Abdelhalim, under oath or through a recorded statement regarding the circumstances of the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 20:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained a copy of Subhi Abdelhalim's driver's license record or driving history.

REQUEST FOR ADMISSION NO. 21:

Admit that as of February 25, 2021, the only source of information CSAA Insurance Exchange had obtained regarding the circumstances of the February 4, 2021 collision was the account provided by its own insured, Subhi Abdelhalim.

REQUEST FOR ADMISSION NO. 22:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained the 911 call audio recording generated by law enforcement in response to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 23:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained body-worn camera footage generated by law enforcement officers who responded to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 24:

Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained computer aided dispatch (CAD) records generated by law enforcement in response to the February 4, 2021 collision.

TIMELINE AND OBTAINABILITY

REQUEST FOR ADMISSION NO. 25:

Admit that the 911 audio recording, body-worn camera footage, and CAD records relating to the February 4, 2021 collision were obtainable through routine public records requests as of February 25, 2021.

REQUEST FOR ADMISSION NO. 26:

Admit that Plaintiff's counsel (Dolan Law Firm) obtained the 911 audio recording on May 12, 2021, less than three months after the February 4, 2021 collision.

CSAA'S FUNDING AND OVERSIGHT OF THE DEFENSE

REQUEST FOR ADMISSION NO. 27:

Admit that CSAA Insurance Exchange funded the defense of *Rosario v. Abdelhalim*, Case No. CGC-21-594102, through retained defense counsel (including Chambers, subsequently Carbone Smith & Koyama, and subsequently Phillips, Spallas & Angstadt LLP).

REQUEST FOR ADMISSION NO. 28:

Admit that CSAA Insurance Exchange maintained a claims file for the bodily injury liability claim arising from the February 4, 2021 collision, and that the claims file was updated with information from the related litigation, CGC-21-594102, during the period the case was pending.

REQUEST FOR ADMISSION NO. 29:

Admit that CSAA Insurance Exchange received periodic reports, updates, or summaries from retained defense counsel regarding the status of the litigation in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, between May 2023 and January 2025.

POST-DENIAL DISCOVERY PRODUCTION AND CSAA'S ACCESS

REQUEST FOR ADMISSION NO. 30:

Admit that the 911 audio recording, body-worn camera footage, and CAD records were produced

to defense counsel representing Abdelhalim in discovery in the underlying action, *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

REQUEST FOR ADMISSION NO. 31:

Admit that the 911 audio recording, body-worn camera footage, and CAD records were used at the deposition of Franciscus Dylan Rosario on August 18, 2022, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

REQUEST FOR ADMISSION NO. 32:

Admit that the 911 audio recording, body-worn camera footage, and CAD records were used at the deposition of Subhi Abdelhalim on September 30, 2022, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

REQUEST FOR ADMISSION NO. 33:

Admit that after February 25, 2021, CSAA Insurance Exchange or persons acting on its behalf obtained, reviewed, or caused to be obtained any law enforcement records relating to the February 4, 2021 collision, including but not limited to the 911 audio recording, body-worn camera footage, CAD records, or police incident reports.

REQUEST FOR ADMISSION NO. 34:

Admit that after February 25, 2021, CSAA Insurance Exchange continued to evaluate, reassess, or monitor the bodily injury liability claim arising from the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 35:

Admit that CSAA Insurance Exchange set or adjusted reserves on the bodily injury liability claim arising from the February 4, 2021 collision at any time after February 25, 2021.

REQUEST FOR ADMISSION NO. 36:

Admit that at some point after February 25, 2021, CSAA Insurance Exchange or its retained defense counsel obtained or received copies of the 911 audio recording, body-worn camera footage, and/or CAD records relating to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 37:

Admit that prior to January 17, 2025, CSAA Insurance Exchange was aware that the 911 audio recording, body-worn camera footage, and CAD records had been served on defense counsel by

Plaintiff's counsel during discovery in CGC-21-594102.

REQUEST FOR ADMISSION NO. 38:

Admit that prior to January 17, 2025, CSAA Insurance Exchange had listened to, reviewed, or been briefed on the contents of the 911 audio recording in which its insured, Subhi Abdelhalim, stated, in substance, "I barely hit him with anything."

THE MOTIONS IN LIMINE AND CSAA'S ROLE

REQUEST FOR ADMISSION NO. 39:

Admit that Motions in Limine Nos. 6 and 17, filed by defense counsel in *Rosario v. Abdelhalim*, CGC-21-594102, on January 17, 2025, stated, in substance, that the 911 audio recording and police records "were not produced in discovery" and were of "unknown provenance."

REQUEST FOR ADMISSION NO. 40:

Admit that CSAA Insurance Exchange reviewed, approved, or was informed of the substance of Motions in Limine Nos. 6 and 17 filed by defense counsel on January 17, 2025, before those motions were filed.

REQUEST FOR ADMISSION NO. 41:

Admit that the representations in Motions in Limine Nos. 6 and 17—that the 911 audio recording and police records "were not produced in discovery" and were of "unknown provenance"—were inconsistent with the sworn testimony of J. Jessup, Esq., who testified on February 18, 2025, that the evidence had been served on defense counsel during discovery.

THE 911 RECORDING: AUTHENTICATION AND CONTENT

REQUEST FOR ADMISSION NO. 42:

Admit that the 911 audio recording contains a statement by Subhi Abdelhalim regarding the February 4, 2021 collision, and that Abdelhalim authenticated the recording at trial on April 17, 2025, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, by stating: "Yes. That is my voice."

REQUEST FOR ADMISSION NO. 43:

Admit that the 911 audio recording contains a statement by Subhi Abdelhalim to the emergency operator, in substance: "I barely hit him with anything."

REQUEST FOR ADMISSION NO. 44:

Admit that a statement by a driver to a 911 operator that he "barely hit" a pedestrian is relevant to the determination of liability in a vehicle-pedestrian collision claim.

REQUEST FOR ADMISSION NO. 45:

Admit that a statement by an insured driver that he "barely hit" a pedestrian would be relevant to CSAA's determination of whether that insured was liable for the collision.

THE UNDERLYING LITIGATION AND OUTCOME

REQUEST FOR ADMISSION NO. 46:

Admit that the underlying lawsuit, *Rosario v. Abdelhalim*, Case No. CGC-21-594102, was filed on July 27, 2021, approximately five months after the February 25, 2021 denial letter.

REQUEST FOR ADMISSION NO. 47:

Admit that the jury in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, returned a 9–3 verdict for the defense on April 25, 2025.

REQUEST FOR ADMISSION NO. 48:

Admit that a 9–3 verdict is the minimum civil majority required for a verdict under California law.

THE LOGICAL CONTRADICTIONS

REQUEST FOR ADMISSION NO. 49:

Admit that if CSAA Insurance Exchange had obtained the 911 audio recording prior to February 25, 2021, CSAA would have heard Subhi Abdelhalim state, in substance, "I barely hit him with anything."

REQUEST FOR ADMISSION NO. 50:

Admit that CSAA Insurance Exchange cannot simultaneously maintain that (a) its investigation of the February 4, 2021 collision was "concluded" as of February 25, 2021, and (b) it had not obtained the 911 audio recording containing its insured's statement about the collision.

REQUEST FOR ADMISSION NO. 51:

Admit that CSAA Insurance Exchange cannot simultaneously maintain that (a) its investigation was "concluded" as of February 25, 2021, and (b) it continued to evaluate, reassess, monitor, or adjust reserves on the claim after that date.

REQUEST FOR ADMISSION NO. 52:

Admit that if CSAA Insurance Exchange was aware, at any time prior to January 17, 2025, that the 911 audio recording and related law enforcement records had been served on defense counsel during discovery, and did not correct the representations made in Motions in Limine Nos. 6 and 17, then CSAA permitted materially false representations to be made to the Court on its behalf.

REQUEST FOR ADMISSION NO. 53:

Admit that CSAA Insurance Exchange maintains standardized templates or form language for denial letters issued to third-party bodily injury claimants.

REQUEST FOR ADMISSION NO. 54:

Admit that the phrase "concluded our investigation" (or substantially similar language) appears in denial letters issued by CSAA to other third-party claimants, and is not unique to the February 25, 2021 denial letter.

REQUEST FOR ADMISSION NO. 55:

Admit that CSAA Insurance Exchange's claims-handling procedures include supervisor review or approval of liability denial determinations before issuance of denial letters.

REQUEST FOR ADMISSION NO. 56:

Admit that CSAA Insurance Exchange tracks claim-closure timelines, denial rates, or comparable performance metrics for claims adjusters.

REQUEST FOR ADMISSION NO. 57:

Admit that the only liability-relevant information CSAA Insurance Exchange obtained before issuing the February 25, 2021 denial letter was the account provided by its own insured, Subhi Abdelhalim.

REQUEST FOR ADMISSION NO. 58:

Admit that CSAA Insurance Exchange did not, at any time before February 25, 2021, make any attempt to contact Plaintiff to obtain his account of the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 59:

Admit that CSAA Insurance Exchange set or adjusted reserves on the claim at any time after issuing the February 25, 2021 denial letter, and that any such reserve change is inconsistent with the claim that the investigation was "concluded" as of that date.

NO-DUTY DEFENSE VERSUS DEFENSE SUBPOENA

REQUEST FOR ADMISSION NO. 60:

Admit that CSAA's retained defense counsel issued a subpoena to the San Francisco Police Department requesting the 911 audio recording, body-worn camera footage, and CAD records relating to the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 61:

Admit that CSAA's retained defense counsel determined that the 911 audio recording, body-worn camera footage, and CAD records were necessary for the defense of the liability claim in *Rosario v. Abdelhalim*, CGC-21-594102.

REQUEST FOR ADMISSION NO. 62:

Admit that if CSAA's retained counsel determined these records were necessary for the defense, the same records could not be unnecessary for a pre-denial investigation of the same claim.

OPINION DEFENSE VERSUS INTERNAL STANDARDS

REQUEST FOR ADMISSION NO. 63:

Admit that CSAA's claims manual, procedures, or training materials define what steps constitute a "complete" or "concluded" investigation before issuing a liability denial.

REQUEST FOR ADMISSION NO. 64:

Admit that CSAA's internal definition of a "concluded" investigation includes obtaining and reviewing police records when law enforcement responded to the incident.

REQUEST FOR ADMISSION NO. 65:

Admit that the phrase "concluded our investigation" in the February 25, 2021 denial letter was intended to represent that CSAA had performed all investigative steps required by its own procedures before reaching a liability determination.

MIL 17 "UNKNOWN PROVENANCE" VERSUS DEFENSE SUBPOENA

REQUEST FOR ADMISSION NO. 66:

Admit that Motion in Limine No. 17 stated that the 911 recording had "unknown provenance" and was "not produced during discovery."

REQUEST FOR ADMISSION NO. 67:

Admit that CSAA's retained counsel subpoenaed the San Francisco Police Department for the same 911 recording that Motion in Limine No. 17 claimed had "unknown provenance."

REQUEST FOR ADMISSION NO. 68:

Admit that a party cannot simultaneously maintain that a document has "unknown provenance" and that the same document is sufficiently identifiable to be the subject of a subpoena.

"CONCLUDED" VERSUS POST-DENIAL CONDUCT

REQUEST FOR ADMISSION NO. 69:

Admit that CSAA's retained counsel did not obtain the 911 audio recording until after the lawsuit was filed on July 27, 2021.

REQUEST FOR ADMISSION NO. 70:

Admit that CSAA's retained counsel obtained the 911 recording through discovery or subpoena in the underlying litigation, not through CSAA's pre-denial investigation.

REQUEST FOR ADMISSION NO. 71:

Admit that CSAA continued to fund the defense of the liability claim for approximately four years after representing that its investigation was "concluded."

SINGLE-SOURCE INVESTIGATION VERSUS "COMPLETE" INVESTIGATION

REQUEST FOR ADMISSION NO. 72:

Admit that a reasonable and complete investigation of a disputed vehicle-pedestrian liability claim would not rely solely on the account of the insured driver.

REQUEST FOR ADMISSION NO. 73:

Admit that an investigation that relies solely on the insured's account, without obtaining objective corroborating or contradicting evidence, is not a "complete" investigation.

REQUEST FOR ADMISSION NO. 74:

Admit that CSAA did not obtain any statement from Plaintiff regarding the February 4, 2021 collision before issuing the February 25, 2021 denial letter.

21-DAY TIMELINE VERSUS OBTAINABILITY

REQUEST FOR ADMISSION NO. 75:

Admit that 21 calendar days (15 business days) is insufficient time to obtain 911 audio, body-worn camera footage, and CAD records from the San Francisco Police Department through routine public records requests.

REQUEST FOR ADMISSION NO. 76:

Admit that Plaintiff's counsel obtained the 911 recording in 97 days (May 12, 2021), and that CSAA had 21 days before the denial letter.

REQUEST FOR ADMISSION NO. 77:

Admit that CSAA did not request the 911 recording, body-worn camera footage, or CAD records from the San Francisco Police Department or the San Francisco Department of Emergency Management at any time before February 25, 2021.

RESERVE ADJUSTMENTS VERSUS "CONCLUDED"

REQUEST FOR ADMISSION NO. 78:

Admit that setting or increasing reserves on a claim after a denial indicates that the insurer is continuing to evaluate the claim's exposure.

REQUEST FOR ADMISSION NO. 79:

Admit that continuing to evaluate a claim's exposure is inconsistent with the representation that the investigation was "concluded" as of the denial date.

REQUEST FOR ADMISSION NO. 80:

Admit that CSAA's claim file reflects any reserve change, claim status change, or reevaluation of the liability claim after February 25, 2021.

"UNREASONABLE RELIANCE" VERSUS INTENDED EFFECT

REQUEST FOR ADMISSION NO. 81:

Admit that CSAA's denial letter was intended to be relied upon by the claimant in deciding whether to pursue litigation.

REQUEST FOR ADMISSION NO. 82:

Admit that CSAA's claims procedures instruct adjusters that denial letters should communicate to the claimant that the investigation is complete and the claim has been finally determined.

INDUSTRY STANDARDS VERSUS DEFENSE CONDUCT

REQUEST FOR ADMISSION NO. 83:

Admit that CSAA's retained defense counsel are experts in third-party automobile liability defense.

REQUEST FOR ADMISSION NO. 84:

Admit that CSAA's retained counsel determined it was necessary to obtain the 911 audio, body-worn camera footage, and CAD records for the defense.

REQUEST FOR ADMISSION NO. 85:

Admit that if liability defense experts considered these records necessary for the defense, industry standards for a complete pre-denial investigation would include obtaining the same records.

AGENCY AND RATIFICATION

REQUEST FOR ADMISSION NO. 86:

Admit that representations made by CSAA's retained defense counsel in *Rosario v. Abdelhalim*, CGC-21-594102, including in Motions in Limine Nos. 6 and 17, were made on behalf of CSAA and within the scope of the retention.

REQUEST FOR ADMISSION NO. 87:

Admit that CSAA did not disavow or correct the representations in Motions in Limine Nos. 6 and 17 after the February 18, 2025 hearing at which J. Jessup, Esq., testified that the evidence had been served on defense counsel during discovery.

Respectfully submitted,

Dated: March 5, 2026

FRANCISCUS DYLAN ROSARIO
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